

Anis Ansari v. Pashchimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 28 August 2020 · Writ-C No. 11735 of 2020 · **Writ disposed; relegated to Clause 6.5; coercive action stayed.**

HEADNOTE

A writ petition disputing an electricity bill is not examined on merits where Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory representation, with a further remedy before the Consumer Grievance Redressal Forum and the Electricity Ombudsman. The petition was disposed with liberty to apply under Clause 6.5 within three weeks; that application was to be considered in accordance with law and disposed of within six weeks, and no coercive action was to be taken in the meantime.

FACTUAL SUMMARY

Anis Ansari filed a writ petition in the Allahabad High Court disputing an electricity bill raised by Pashchimanchal Vidyut Vitran Nigam Ltd. After an adjournment on 6 August 2020 to complete service on the licensee's counsel, the Division Bench heard the petition on 28 August 2020. Counsel for the distribution company objected that the petitioner had an alternative remedy of representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and a further remedy before the Consumer Grievance Redressal Forum and the Electricity Ombudsman against the order passed thereunder.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-alternate-remedy

HOLDING

A writ petition disputing an electricity bill is disposed of on the licensee's objection of alternative remedy, with liberty to apply under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed assessment within three weeks; such application shall be considered in accordance with law and disposed of within six weeks, and no coercive action shall be taken till then. Against the Clause 6.5 order, the consumer has a further remedy before the Consumer Grievance Redressal Forum and the Electricity Ombudsman. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy

The Court treated Clause 6.5 as the statutory alternative to a writ petition disputing an electricity bill, and directed that a Clause 6.5 application filed within three weeks be considered in accordance with law and disposed of within six weeks. ¶ 1

billing-objection-to-executive-engineer-under-6.5

The Court accepted the preliminary objection that a representation before the appropriate authority under Clause 6.5 is the remedy for the disputed bill, rather than a writ. ¶ 1

bill-correctness-under-clause-6.5-not-cgrf-or-ombudsman

The Court routed the bill dispute to Clause 6.5 first, treating the Consumer Grievance Redressal Forum and Electricity Ombudsman as the further remedy against the order passed under Clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL OR ASSESSMENT

The writ was disposed on alternative remedy without examining the bill on merits. ¶ 1

